



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HB 2228: elder abuse; registry; attorney general

BLACKMAN FLOOR AMENDMENT

1. Directs the Arizona Prosecuting Attorney's Advisory Council to develop a statewide training curriculum on Arizona mandatory reporting laws and make it available to individuals who have a duty to report.

BLACKMAN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2228
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. Section 15-245, Arizona Revised Statutes, is amended
3 to read:

4 15-245. Mandatory reporting training; materials

5 A. The Arizona prosecuting attorneys' advisory council shall
6 develop a statewide training curriculum on the mandatory reporting laws of
7 this state, including section 13-3620, for public school personnel. Each
8 public school shall require its personnel to complete the training
9 developed pursuant to this section.

10 [B. THE ARIZONA PROSECUTING ATTORNEYS' ADVISORY COUNCIL SHALL
11 DEVELOP A STATEWIDE TRAINING CURRICULUM ON THE MANDATORY REPORTING LAWS OF
12 THIS STATE, INCLUDING SECTION 46-454, AND SHALL MAKE THE TRAINING
13 CURRICULUM AVAILABLE TO PERSONS WHO ARE REQUIRED TO REPORT PURSUANT TO
14 SECTION 46-454.]

15 [B.] [C.] The department of education shall provide resources and
16 materials developed pursuant to this section that schools may use for the
17 purposes of providing information on the mandatory reporting laws of this
18 state, including section 13-3620, to parents and students.

19 [C.] [D.] The department shall make the training curriculum and
20 materials developed pursuant to this section available to public and
21 private schools. This section does not require private schools to offer
22 the training developed pursuant to this section.>>

23 Sec. 2. Section 46-457, Arizona Revised Statutes, is amended to
24 read:

25 46-457. Elder abuse central registry; mandatory reporting;
26 release of information

27 A. A person who files an action under this article shall serve
28 notice and one copy of the pleading with the attorney general within

1 thirty days after the action is filed in the superior court. The notice
2 shall identify the action, the person against whom the civil complaint has
3 been filed and that person's attorney. The person who files an action ~~is~~
4 ~~responsible for submitting~~ SHALL SUBMIT a report ~~on~~ TO THE ATTORNEY
5 GENERAL NOT MORE THAN TWO YEARS AFTER THE INITIAL NOTICE IS SUBMITTED TO
6 THE ATTORNEY GENERAL THAT INDICATES WHETHER THE ACTION IS ONGOING AND
7 SHALL SUBMIT A REPORT THAT PROVIDES the final disposition of the case
8 within thirty days after the final action is taken.

9 B. Except as otherwise provided in this subsection, a state agency
10 other than adult protective services that renders an administrative
11 decision that substantiates the allegation of abuse or that files a civil
12 action that alleges abuse, neglect or financial exploitation pursuant to
13 this article or title 36 shall serve notice and one copy of the
14 administrative decision or pleading with the attorney general within
15 thirty days after the administrative decision is rendered or within thirty
16 days after the action is filed in the superior court. The agency ~~is~~
17 ~~responsible for submitting~~ SHALL SUBMIT a report on the final disposition
18 of the case within thirty days after the final action is taken. Adult
19 protective services shall report its findings to the registry established
20 pursuant to section 46-459. The department of economic security shall not
21 provide the notice prescribed in this subsection for information
22 maintained in the adult protective services registry pursuant to section
23 46-459.

24 C. If the victim of the offense is a vulnerable adult, a person who
25 files a criminal complaint or indictment involving a violation of this
26 article or section 13-1102, 13-1103, 13-1104, 13-1105, 13-1201, 13-1203,
27 13-1204, 13-1303, 13-1304, 13-1403, 13-1404, 13-1406, 13-1802, 13-1807,
28 13-2002, 13-2310 or 13-3623 shall submit a copy of the criminal complaint
29 or indictment to the attorney general within thirty days after
30 arraignment. Within thirty days ~~of~~ AFTER the date of issuance of the
31 minute entry the court shall endorse to the attorney general a copy of the
32 sentencing minute entry or the minute entry reflecting the case has been
33 dismissed or a judgment of acquittal has been entered. The attorney
34 general shall develop guidelines to implement this subsection.

35 D. The attorney general shall maintain a registry containing the
36 names of persons pursuant to subsection A, B or C of this section with the
37 date the action was filed with the superior court or the date the
38 administrative decision was rendered, the dates of the conduct set forth
39 in the complaint, the indictment or decision, the general nature of the
40 complaint, indictment or decision and the disposition of the complaint,
41 indictment or decision, if known. IF A REPORT ON THE STATUS AND
42 DISPOSITION OF AN ACTION IS NOT SUBMITTED PURSUANT TO SUBSECTION A, B OR C
43 OF THIS SECTION, THE ATTORNEY GENERAL SHALL EITHER:

44 1. IF THE ATTORNEY GENERAL IS ABLE TO DETERMINE THE STATUS OR
45 DISPOSITION OF THE ACTION, UPDATE THE REGISTRY.

46 2. IF THE ATTORNEY GENERAL IS UNABLE TO DETERMINE THE STATUS OR
47 DISPOSITION OF THE ACTION, DELETE THE INFORMATION FROM THE REGISTRY.

1 E. The information maintained pursuant to subsection D of this
2 section is available to the public on written request to the custodian of
3 the registry.

4 F. A person may submit a written statement on that person's own
5 behalf to the custodian of the registry. The statement is part of the
6 records for distribution in response to all inquiries concerning that
7 person.

8 G. A person or agency that distributes information in the registry
9 in good faith is not subject to civil or criminal liability.

10 Enroll and engross to conform

11 Amend title to conform

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